

Sushil Kumar Sahu v. Purvanchal Vidut Vitran Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 6 July 2023 · 2023:AHC:133949-DB · WRIT - C No. - 21262 of 2023 · **Writ disposed; petitioner to be heard on 12 July 2023, then merits decided.**

HEADNOTE

A writ complaining that no personal hearing was given under Clause 8.1 of the U.P. Electricity Supply Code, 2005 is disposed of by directing the petitioner to appear before the competent authority on 12 July 2023 and, if he appears, directing that authority to hear him and then decide the case on merits.

FACTUAL SUMMARY

Sushil Kumar Sahu moved the Allahabad High Court against Purvanchal Vidut Vitran Nigam Ltd. and another, complaining that the licensee had not given him a personal hearing under Clause 8.1 of the U.P. Electricity Supply Code, 2005. The licensee's counsel stated that a date had earlier been fixed under that clause but the petitioner had not appeared, and that a hearing would be given if the proceeding was still pending. The petitioner's counsel said he would appear if a date were fixed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

Personal hearing under clause 8.1

HOLDING

The writ is disposed of. The petitioner shall appear before the competent authority on 12.7.2023. If he appears, the authority shall give him an opportunity of hearing in view of Clause 8.1 of the U.P. Electricity Supply Code, 2005 and thereafter proceed on the merits. ¶ 5

PRINCIPLE TAGS

clause-8.1b-personal-hearing-mandatory-before-final-assessment

The petitioner's only grievance was denial of a personal hearing under Clause 8.1. The Court disposed of the writ by fixing 12.7.2023 for his appearance and directing the competent authority, if he appears, to hear him before proceeding on the merits. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 8.1 PROCEEDING

Left to the competent authority after the personal hearing, if the petitioner appears on 12.7.2023. ¶ 5